

Postal address:
Box 8114
104 20 Stockholm
Website:
www.imy.se
Email:
imy@imy.se
Phone:
08-657 61 00
1(21)

Legal Position Statement IMYRS

2024:1 – Complaints Against Search Services with Publishing License

The Swedish Authority for Privacy Protection (IMY) legal position statements contain an account of IMY's views on legal issues where there is a lack of guiding court practice or guidance from the European Data Protection Board (EDPB). They are binding for IMY's operations and serve as guidance for the public. The statements are made against the backdrop of the legal situation at the time of the decision and remain in effect until further notice. The statements may be revoked or amended if new court practice or guidance from the EDPB emerges.

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****Summary****

So far, the Swedish Authority for Privacy Protection (IMY) has assessed that the regulations in the Fundamental Law on Freedom of Expression and the Data Protection Act have constituted obstacles to intervening against search services with publishing permits that publish personal data. IMY has reconsidered this assessment and determined that the authority has the competence to initiate supervision in response to complaints against such search services.

Search services refer here to services that, free of charge or for a fee, make a large amount of personal data available without any real discernment and with the possibility of searching by person. The personal data published can be of various kinds. For example, it may involve names, addresses, ages, household sizes, vehicle ownership, and corporate engagements. It may also involve information about convictions in criminal cases and other data regarding legal violations.

The reason IMY has reconsidered its previous assessment is that there has been a development in European and Swedish case law. Firstly, individuals who complain to IMY have been granted a strengthened legal position, and IMY's obligations to investigate and act on their complaints have been expanded. Secondly, it has been clarified that when the right to protection of personal data and the freedom of expression and information are to be reconciled, it should be possible to weigh the rights against each other based on the circumstances of the individual case.

Another reason is that IMY has received many complaints against search services with publishing permits over a longer period. The complaints indicate that individuals perceive the extensive publication and dissemination of personal data occurring through the search services as very intrusive and concerning. The concern may, for example, relate to the possibility that the information could be used by criminals to select and profile victims based on age, that the individual lives alone, or owns a valuable vehicle. Some search services also provide information about convictions in criminal cases and other data regarding legal violations that involve crimes, which can lead to significant harm to privacy.

IMY notes that the regulation regarding publishing permits in Swedish law means that in most cases, it is not possible to weigh the relevant rights against each other based on the circumstances of the individual case when publishing personal data in search services. Additionally, IMY is obliged to investigate complaints under the Data Protection Regulation and that the right to submit complaints to the supervisory authority is a central legal remedy for individuals. IMY assesses that the interest in freedom of expression in publishing personal data in search services does not justify the far-reaching exceptions from the Data Protection Regulation made in the Swedish regulation and that the regulation is therefore not compatible with EU law regarding such publication.

IMY assesses that – to achieve compatibility with EU law – it is required that IMY is competent, according to the regulations in the Data Protection Regulation, to investigate and address individuals' complaints against publications of personal data in search services with publishing permits.

IMY's conclusion is that the authority has the competence to initiate supervision in response to complaints against the publication of personal data occurring in search services with publishing permits. However, IMY has not taken a position on the extent to which the substantive rules in the Data Protection Regulation can be applied to a search service with a publishing permit, but will return to that question in its supervision.

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1. Issue and Scope

The question that the Swedish Authority for Privacy Protection (IMY) intends to address with this legal position statement is whether IMY has the authority to initiate supervision in response to complaints against search services with publishing certificates. This position statement does not cover the question of the extent to which the material regulations in the General Data Protection Regulation (GDPR) should be applied within the framework of such supervision.

By search services, we refer here to services that publish collections of data containing personal data with the possibility of searching by person. Common to these search services is that they, free of charge or for a fee, make a large amount of personal data available without any real discernment. The personal data that is published can be of various kinds. For example, it may involve names, addresses, ages, household sizes, vehicle ownership, and corporate engagements. It may also involve information about convictions in criminal cases and other information about legal violations. This position statement only concerns the publication of personal data that occurs in search services. The statement does not pertain to other types of publications that are protected by the constitution through publishing certificates.

2. Background of the Position Statement

IMY is the supervisory authority in Sweden according to the GDPR and has, among other things, the task of ensuring compliance with it and handling complaints from individuals who believe that the processing of their personal data violates the regulation.

So far, IMY has not considered itself authorized to exercise supervision over search services with publishing certificates. Thus, IMY has not deemed itself able to supervise when individuals have submitted complaints to IMY regarding how such services handle their personal data. This is in consideration of the provision in Chapter 1, Section 7, first paragraph of the Act (2018:218) with supplementary provisions to the EU's General Data Protection Regulation (Data Protection Act). The provision states that the GDPR and the Data Protection Act shall not be applied to the extent that it would conflict with the Freedom of the Press Act (TF) or the Fundamental Law on Freedom of Expression (YGL) (together referred to as the media constitutional laws). However, IMY has considered itself authorized to exercise supervision if there are exceptions to the constitutional protection, for example, the exception that applies to certain data collections containing sensitive personal data (Chapter 1, Section 20 YGL).

IMY assesses that there is a need to reconsider the question of the extent to which IMY is authorized to exercise supervision in response to complaints against search services with publishing certificates. There are primarily two reasons for this.

Firstly, there has been a development in European and Swedish case law in two respects. In the first respect, individuals submitting complaints to IMY have gained a strengthened legal position, and IMY's obligations to investigate and act on their complaints have been expanded. In the second respect, it has been clarified that when the right to protection of personal data and the freedom of expression and information are to be reconciled, it shall be considered...

1 Regulation (EU) 2016/679 of the European Parliament and of the Council of 27 April 2016 on the protection of natural persons with regard to the processing of personal data and on the free movement of such data, and repealing Directive 95/46/EC (General Data Protection Regulation).

2 The Administrative Court of Appeal in Stockholm's ruling on 22 June 2023 in case no. 1128-23. The decision has been appealed to the Supreme Administrative Court, see the ongoing case no. 4588-23 at the Supreme Administrative Court.

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It may be possible to weigh the rights against each other based on the circumstances of the individual case.

Secondly, it can be noted that IMY has received many complaints regarding search services with publishing certificates over an extended period. The complaints indicate that individuals perceive the extensive publication and dissemination of personal data occurring through the search services as very intrusive and concerning.³ The search services provide information about, among other things, address, age, phone number, the size of the residence and household, corporate engagements, and vehicle ownership. Even though each individual piece of information may not always be perceived as an infringement of privacy, the volume of personal data can allow for mapping of the individual and be

perceived as intrusive when disseminated to the public. The dissemination of information can also create anxiety among individuals regarding how the data is used. The concern may, for example, relate to the possibility that the information could be used by criminals to select and map out victims based on age, that the individual lives alone, or owns a valuable vehicle. The information available through the search services can further be used to map public employees in order to subsequently attempt to influence the decisions they make in their official capacity through threats or other means. Certain search services also provide information about convictions in criminal cases and other data regarding legal violations that involve crimes. The processing of such data can result in significant privacy harm and is therefore subject to special protective regulation in Article 10 of the General Data Protection Regulation. The regulation stipulates, among other things, that when entities other than authorities process personal data about crimes, it is required that the processing is permitted under Union law or the national law of the member states and that the regulation establishes appropriate safeguards for the rights and freedoms of the data subjects. Furthermore, the regulation states that a complete register of convictions in criminal cases may only be maintained under the control of an authority.

3 The Relationship Between Media Fundamental Laws and Data Protection Regulation

3.1 Regulation in the Data Protection Act

According to Chapter 1, Section 7, first paragraph of the Data Protection Act, the General Data Protection Regulation and the Data Protection Act shall not apply to the extent that it would conflict with the media fundamental laws. According to the preparatory works, the provision clarifies that the Freedom of the Press Act (TF) and the Fundamental Law on Freedom of Expression (YGL) take precedence over the provisions of the General Data Protection Regulation and the Data Protection Act.⁴ The European Commission has expressed doubts in communication with the Swedish government regarding whether Sweden has achieved a proper balance through the precedence given to the media fundamental laws over the General Data Protection Regulation.⁵

In Chapter 1, Section 7, second paragraph of the Data Protection Act, an exception is made for freedom of expression and information outside the constitutionally protected area.⁶ The exception includes the processing of personal data that occurs for journalistic purposes or for academic, artistic, or literary creation. This may, for example, involve journalistic activities conducted in blog form but without a publishing certificate. The exception means that the provisions of the General Data Protection Regulation and the Data Protection Act do not apply.

³ See e.g., IMY report 2020:1, p. 101.

⁴ Prop. 2017/18:105 p. 187.

⁵ See dir. 2023:145 p. 9 and Ju2019/01709.

⁶ See IMY's legal position statement of June 22, 2022, IMYRS 2022:2 - The exception for journalistic purposes in Chapter 1, Section 7, second paragraph of the Data Protection Act.

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Regarding supervision, remedies, liability, and sanctions in practice are applicable solely with respect to supervision over or violations of the provisions concerning the security of personal data.⁷

3.2 Regulation in the Freedom of Expression Act (YGL)

Publications on the internet generally fall outside the scope of the YGL.⁸

This means that the General Data Protection Regulation (GDPR) is normally applicable to such processing. However, exceptions to the main rule are made, among other things, through the database rule (Chapter 1, Section 4 YGL). For the processing of personal data covered by the database rule, the GDPR shall not apply to the extent that it would conflict with the YGL (Chapter 1, Section 7, first paragraph of the Data Protection Act).

The database rule provides constitutional protection under certain conditions for, among other things, expressions made through provisions to the public from databases. What is typically meant is the

provision of stored information from websites upon request. For certain actors, the constitutional protection applies automatically, that is, without any special action needing to be taken. This is the case for editorial offices of periodicals and editorial offices for programs. Other traditional mass media companies, such as book publishers that publish printed books and news agencies, also have automatic constitutional protection for their databases. Other actors have the opportunity to apply to the Media Authority for a publishing certificate and thereby obtain a so-called voluntary constitutional protection (cf. Chapter 1, Section 4, first paragraph 1 d and Section 5 YGL). In an application for a publishing certificate, there is no examination of the content or purpose of the database.

According to the prohibition of censorship in Chapter 1, Section 11 YGL, what is intended to be presented in a program or through technical recordings may not be reviewed in advance by an authority or another public body. According to the prohibition against obstructive measures in the same paragraph, it is not permitted for an authority or another public body to prohibit or hinder the production, publication, or dissemination to the public of a program or a technical recording due to its content, unless the action is supported by the YGL.

According to the exclusivity principle in Chapter 1, Section 14 YGL, an authority or another public body may not intervene against anyone without support in the YGL for having abused freedom of expression in a program or a technical recording or for having contributed to such abuse. Nor may they intervene against the program or recording for such reasons without support in the YGL. The exclusivity principle means that the YGL is the exclusive sanction and procedural law within the scope of the law.

The provisions concerning offenses against freedom of expression in Chapter 5 YGL outline the criminal law boundaries for liability in publications in search services. In the so-called crime catalog, the offenses for which liability can be imposed are specified, e.g., unlawful threats, defamation, insult, and incitement against a group of people (see Chapter 5, Section 1 YGL, which refers to Chapter 7 TF).

For offenses against freedom of expression, a special liability system applies, where the main rule is that only one person can be held accountable. According to Chapter 6, Section 1 YGL, the publisher is, as a starting point, responsible.

7 See Prop. 2017/18:105 p. 187.

8 Prop. 2021/22:59 p. 30.

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The legislator has established a number of thresholds that must be crossed before a potential violation of freedom of expression can be prosecuted.⁹ The Freedom of Expression Act (YGL) contains procedural special regulations for freedom of expression cases. Only the Chancellor of Justice can act as a public prosecutor in freedom of expression cases, initiate a preliminary investigation, and, in the capacity of a prosecutor, decide on coercive measures. The trial is conducted with a jury unless the parties waive this request. A two-thirds majority in the jury is required for a conviction. If the jury acquits, the verdict cannot be changed by the court or in a higher instance. However, it is possible if the jury's verdict is convicting. According to the so-called instruction in Chapter 1, Section 15 of the YGL, the Chancellor of Justice, the jury, and the court must always particularly consider the interest of freedom of expression.

Individuals who have been subjected to a crime or who have otherwise been harmed by a crime, i.e., the victim, can bring a private prosecution (Chapter 7, Section 1 of the YGL, which refers to Chapter 9, Section 7 of the Freedom of the Press Act (TF)). Among the freedom of expression offenses, it is primarily defamation and insult that can be directed against individuals in this manner. According to Chapter 5, Section 5 of the Penal Code, which also applies to the Chancellor of Justice in freedom of expression cases, the main rule is that only the victim may bring charges for defamation. It is stated that the Chancellor of Justice may bring charges if the victim indicates the crime for prosecution and if

the prosecution can be deemed warranted from a public perspective.

Chapter 1, Section 20 of the YGL states that the provisions of the YGL do not prevent laws from being issued that prohibit the publication of sensitive personal data, including ethnic origin, political affiliation, biometric data, or health. For the provision to be applicable, three conditions must be met:

(i)

that sensitive personal data is published (first paragraph),

(ii)

that the data is part of a collection of information that has been organized in such a way that it is possible to search for or compile this data (second paragraph 1), and

(iii)

that, considering the activities and the forms under which the collection of information is made available, there are specific risks for improper intrusions into individuals' personal integrity (second paragraph 2).

The Swedish Authority for Privacy Protection (IMY) has the authority to supervise whether the exception in Chapter 1, Section 20 of the YGL is applicable.¹⁰ However, the exception in Chapter 1, Section 20 of the YGL is narrow and is intended to cover a limited number of publication situations. The Constitutional Committee stated in the preparatory works for the provision that a significant margin should be applied regarding what falls within the constitutionally protected area so that the interest in freedom of expression must not yield to the interest of protecting individuals' integrity in borderline or difficult-to-assess situations.¹¹ Furthermore, the provision should be applied with reference to the so-called instruction in Chapter 1, Section 15 of the YGL. It is stated that those who are to judge abuse of freedom of expression should always keep in mind that freedom of the press and freedom of expression is a foundation for a free societal order and, in doubtful cases, prefer to acquit rather than convict. The narrow scope of application means that the delegation provision is likely not applicable to all publications of sensitive personal data that occur in search services.

In summary, it can be stated that according to the YGL, it is possible to intervene against the publication of personal data in search services only according to the YGL's liability and sanction system or if some exception from the YGL is applicable. It is only when the provisions in Chapter 1, Section 20 of the YGL are triggered that IMY has so far considered itself to have the authority to supervise a search service with a publishing certificate.

9 See Axberger, Hans-Gunnar, "The Freedom of Expression Acts, Rights and Limits for Media and Citizens" (2023, version 5, JUNO), p. 173.

10 See the Administrative Court of Appeal in Stockholm's judgment on June 22, 2023, in case no. 1128-23. The decision has been appealed to the Supreme Administrative Court, see ongoing case no. 4588-23.

11 Bet. 2017/18:KU16 p. 41.

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3.3 Legislative Work in the Area

The question of whether the media foundations are compatible with the EU legal data protection regulations has been discussed for a long time. When the previously applicable data protection directive was implemented in Swedish law, a provision was introduced in Section 7 of the Personal Data Act (1998:204) stating that this law would not apply to the extent that it would conflict with the media foundations. The Council on Legislation questioned, similar to several referral bodies, whether this was compatible with EU law.

The voluntary constitutional protection for databases, which is used by, among others, search services, was introduced in 2003 following a development that meant that entities other than traditional mass media companies increasingly began to provide information to the public on the internet. Other

media companies and individuals had become involved in news dissemination, opinion formation, and information provision, and the new communication was deemed necessary for freedom of expression and freedom of information. Against this background, the government assessed that there were reasons to offer a constitutional protection equivalent to that which had previously been reserved for mass media companies also to the new actors.

At the introduction of the voluntary constitutional protection, the Constitutional Committee warned that conflicts could arise with the protection of personal integrity and specifically pointed out that the constitutional protection could, in the worst case, encompass databases that are pure personal registers. The Constitutional Committee therefore believed that the government should further analyze or have analyzed whether the voluntary constitutional protection could conflict with provisions aimed at protecting personal integrity. The Parliament agreed with the committee's assessment and communicated this to the government.

The Freedom of Expression Committee was tasked with analyzing the issue but assessed that there was no need for constitutional amendments. In 2014, the government tasked the Media Foundations Committee to investigate the matter again. The Media Foundations Committee assessed that there were reasons to restrict the constitutional protection for certain types of search services and instead allow provisions at the legislative level. The committee therefore proposed an explicit exception in the Freedom of the Press Act (TF) and the Fundamental Law on Freedom of Expression (YGL) for certain search services that provide sensitive personal data (including data revealing political or religious beliefs or concerning health and sexual life) and data about violations of the law, among others. The government agreed with the committee's assessment and proposed amendments to TF and YGL in accordance with the committee's proposal.

The Parliament adopted the government's proposal for amendments to TF and YGL in the part concerning collections of sensitive personal data but rejected the proposal in the part concerning personal data about violations of the law. However, the Parliament announced to the government that an inquiry should be tasked with re-examining the issue of limiting constitutional protection for search services that contain personal data about individuals who have committed violations of the law, appear in convictions, or have been subject to criminal procedural coercive measures. The Constitutional Committee stated in this context that the committee believed that search services providing personal data...

12 Directive 95/46/EC of the European Parliament and of the Council of 24 October 1995 on the protection of individuals with regard to the processing of personal data and on the free movement of such data.

13 Prop. 1997/98:44 p. 48 f. and 235.

14 Prop. 2001/02:74 p. 47-48.

15 Bet. 2001/02:KU21 p. 32.

16 Rskr. 2001/02:233.

17 SOU 2009:14 and SOU 2012:55.

18 SOU 2016:58.

19 Prop. 2017/18:49 p. 144.

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Concerning violations of the law, etc., constitutes a serious infringement on individuals' personal integrity.²⁰

On January 1, 2019, the amendment of the media fundamental laws came into force (Chapter 1, Section 13 of the Freedom of the Press Act and Chapter 1, Section 20 of the Fundamental Law on Freedom of Expression).

The government, in accordance with the Riksdag's announcement, tasked the 2018 Committee on Freedom of the Press and Freedom of Expression to investigate the issue of limiting the constitutional

protection for collections of data concerning violations of the law, among other things.

The committee presented proposals that meant that the existing delegation provisions regarding sensitive personal data would be supplemented so that personal data concerning violations of the law would be added to the enumeration of categories of personal data that can be regulated by ordinary law. The committee also proposed certain other changes in the formulation of the existing delegation provision.²¹ The government presented proposals for amendments to Chapter 1, Section 13 of the Freedom of the Press Act and Chapter 1, Section 20 of the Fundamental Law on Freedom of Expression in accordance with the committee's proposals.²² The Constitutional Committee shared the government's assessment that the current regulation provides insufficient protection against violations of privacy but believed that the government's proposal could not be considered an appropriate limitation of the constitutionally protected area. The Riksdag therefore rejected the proposals, with the exception of a correction of linguistic inaccuracies in the provisions.²³

The issue of constitutional protection for search services that publish personal data concerning violations of the law is currently being investigated anew.²⁴ The investigation that has been appointed has a broader mandate than previous investigations as it will also examine the protection for search services that publish personal data concerning address, telephone number, marital status, and other information related to individuals' personal circumstances. The government's committee directive provides a more detailed account of the background to the absence of a delegation provision corresponding to that in Chapter 1, Section 20 of the Fundamental Law on Freedom of Expression for data concerning violations of the law and part of the problems it entails.²⁵

4 Development of Practice at the EU Level Regarding the Relationship Between the Right to Protection of Personal Data and Certain Other Rights

4.1 The Relationship to Freedom of Expression and Information

The fundamental right to the protection of personal data is established in Article 8 of the Charter of Fundamental Rights of the European Union (hereinafter referred to as the Charter).²⁶ According to this, everyone has the right to the protection of personal data concerning him or her (Article 8.1). Furthermore, personal data must be processed lawfully for specified purposes and on the basis of the consent of the data subject or some other legitimate and lawful basis (Article 8.2). Additionally, everyone has the right to access data collected concerning him or her and to have it rectified. Moreover, an independent authority must ensure that these rules are complied with (Article 8.3). A right that is closely linked to the right to the protection of personal data is the right to respect for private and family life, which is established in Article 7 of the Charter.

20 See bet. 2017/18:KU16 and 2018/19:KU2, rskr. 2017/18:336 and 2018/19:16.

21 SOU 2020:45.

22 Prop. 2021/22:59.

23 Bet. 2021/22:KU14 p. 29 f. and Appendix 3, rskr. 2021/22:283.

24 Ju 2023:21, Dir. 2023:145.

25 Dir. 2023:145 p. 9.

26 Cf. Recital 1 of the General Data Protection Regulation.

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In Article 11 of the Charter, the right to freedom of expression and information is established. It states that everyone has the right to freedom of expression. Furthermore, it stipulates that this right includes freedom of opinion and the freedom to receive and disseminate information and ideas without interference by public authorities and regardless of frontiers.

Neither the right to the protection of personal data nor the right to freedom of expression and information are absolute rights. Article 52.1 of the Charter indicates that limitations on the exercise of the rights and freedoms recognized in the Charter must be provided for by law and be compatible with the essential content of these rights and freedoms. It further states that limitations, taking into account

the principle of proportionality, may only be made if they are necessary and actually respond to objectives of general interest recognized by the Union or the need to protect the rights and freedoms of others.

The right to the protection of personal data is specified in the General Data Protection Regulation, the purpose of which is to protect personal privacy in the processing of personal data and to harmonize data protection regulation to enable the free flow of personal data within the EU.²⁷ However, the General Data Protection Regulation has been designed with consideration for other rights and interests and contains mechanisms that allow for a proper balance to be achieved between these,²⁸ including between personal privacy and freedom of expression and information.²⁹ The task of reconciling these rights has primarily been delegated to the Member States within the framework of the regulation in Article 85.³⁰

According to Article 85.1, Member States shall, by law, reconcile the right to privacy in accordance with the General Data Protection Regulation with freedom of expression and information, including processing carried out for journalistic purposes or for academic, artistic, or literary creation. According to Article 85.2, Member States shall establish exceptions or derogations from certain parts of the Regulation³¹ for processing carried out for journalistic purposes or for academic, artistic, or literary creation, if these are necessary to reconcile the right to privacy with freedom of expression and information.

Article 52 of the Charter and Article 85 of the General Data Protection Regulation thus set limits on how Member States may reconcile the right to the protection of personal data with the right to freedom of expression and information. Furthermore, exceptions to the right to the protection of personal data under the General Data Protection Regulation may only occur if the exceptions are necessary to reconcile the rights.³²

The Court of Justice of the European Union has stated that in order to make a balanced assessment between fundamental rights, exceptions and limitations regarding the protection of personal data must not go beyond what is strictly necessary.³³ This statement referred directly to Directive 95/46/EC³⁴, which was replaced by

27 See Article 1 of the General Data Protection Regulation and, among others, Recital 10 of the General Data Protection Regulation.

28 See the judgment of the Court of Justice of the European Union of December 21, 2023, *Krankenversicherung Nordrhein*, C-667/21, EU:C:2023:1022, para. 54 and the case law cited therein.

29 See Recital 4 of the General Data Protection Regulation.

30 Cf. the judgment of the Court of Justice of the European Union of February 14, 2019, *Buivids*, C-345/17, EU:C:2019:122, para. 50.

31 Chapter II (principles), Chapter III (the rights of the data subject), Chapter IV (data controller and data processor), Chapter V (transfer of personal data to third countries or international organizations), Chapter VI (independent supervisory authorities), Chapter VII (cooperation and consistency), and Chapter IX (specific situations in the processing of personal data).

32 Cf. the judgment of the Court of Justice of the European Union of February 14, 2019, *Buivids*, C-345/17, EU:C:2019:122, para. 63.

33 Cf. the judgment of the Court of Justice of the European Union of February 14, 2019, *Buivids*, C-345/17, EU:C:2019:122, para. 64.

34 Directive 95/46/EC of the European Parliament and of the Council of October 24, 1995, on the protection of individuals with regard to the processing of personal data and on the free movement of such data.

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The General Data Protection Regulation is relevant according to IMY's assessment, even in relation to the General Data Protection Regulation. The Court of Justice of the European Union has also established that in order to take into account the importance of freedom of expression in democratic

societies, the concepts associated with it, including journalism, should be interpreted broadly. This means, among other things, that exceptions from and limitations of data protection regulations should not only apply to media companies but to all individuals engaged in journalistic activities. Furthermore, the court's case law indicates that "journalistic activity" is any activity aimed at disseminating information, opinions, or ideas to the public, regardless of the medium through which this occurs. The Court of Justice of the European Union, however, found in the judgment *Google Spain and Google* that a search engine provider's processing through the provision of the search engine could not be considered to be for journalistic purposes.

4.2 The relationship to the public's right to access public documents

According to Article 86 of the General Data Protection Regulation, personal data in public documents held by a public authority or a public body may be disclosed in accordance with the Union law or the national law of the Member State that the authority or public body is subject to, in order to reconcile the public's right to access public documents with the right to the protection of personal data in accordance with the Regulation.

The Court of Justice of the European Union has established that Member States are obliged to ensure that public access to public documents is compatible with the fundamental rights regarding respect for private life and the protection of personal data. In the case, it concerned national legislation that provided the public access to personal data about "points" for violations of traffic rules. In light of how sensitive the relevant data was assessed to be, the right to respect for private life was deemed to outweigh the public interest in access to public documents, despite the right to freedom of information in Article 85 of the General Data Protection Regulation. The Court of Justice of the European Union emphasized that the function of the General Data Protection Regulation is to safeguard the fundamental rights to private life and the protection of personal data, and that any exception from these, even if permitted under the General Data Protection Regulation, must be preceded by a proportionality assessment. The Court of Justice of the European Union stated the following:

[...] even though public access to public documents, as indicated in recital 154 of the Regulation, constitutes a public interest that may justify the disclosure of personal data contained in such documents, it must, however, be ensured that public access to public documents is compatible with the fundamental rights regarding respect for private life and the protection of personal data, which is, moreover, an express requirement under Article 86. Taking into account, among other things, how sensitive the data about points for violations of traffic rules is, and the severity of the infringement of the fundamental rights of the individuals concerned regarding respect for private life and the protection of personal data that the disclosure of this data entails, these rights must be considered to weigh

35 See the Court of Justice of the European Union judgment of February 14, 2019, *Buivids*, C-345/17, EU:C:2019:122, pp. 51-53.

36 See the Court of Justice of the European Union judgment of May 13, 2014, *Google Spain and Google*, C-131/12, EU:C:2014:317, p. 85.

37 See the Court of Justice of the European Union judgment of June 22, 2021, *Latvijas Republikas Saeima*, C-439/19, EU:C:2021:504.

38 See the Court of Justice of the European Union judgment of June 22, 2021, *Latvijas Republikas Saeima*, C-439/19, EU:C:2021:504, p. 120.

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heavier than the public interest in accessing public documents, including the national vehicle and driver register.³⁹

The provisions of the General Data Protection Regulation were therefore considered to constitute an obstacle to national legislation that allowed the transfer of data on violations of the law to economic actors for further use.⁴⁰

The Court of Justice of the European Union has recently emphasized the high standards that must be

applied by national courts when disclosing convictions in criminal cases.⁴¹ The Court stated that national courts are obliged to apply the requirements of the General Data Protection Regulation in its entirety, even if there is no specific provision in applicable national law that allows for the interests of the data subjects to be taken into account.⁴² The Court reminded that limitations under Article 52.1 of the Charter must not exceed what is strictly necessary and that legislation involving an intervention must contain clear and precise provisions regulating the scope and application of the relevant measure.⁴³ The Court emphasized the need for a reconciliation between public access to public documents and the fundamental rights regarding respect for private life and protection of personal data.⁴⁴

In the same ruling, the Court established that, considering the sensitivity of the data in convictions in criminal cases, and the severity of the intervention in the right to respect for private life and protection of personal data that the disclosure of such data entails, the rights of these individuals should be considered to weigh heavier than the public interest in accessing public documents.⁴⁵ The Court also established that the right to freedom of information under Article 85 of the General Data Protection Regulation does not justify the disclosure of personal data concerning convictions in criminal cases to anyone who requests such data, without the requester demonstrating a specific interest in obtaining this information.⁴⁶

The above two rulings from the Court of Justice of the European Union underscore the need for a balancing of rights between, on the one hand, the right to protection of personal data, as expressed in the General Data Protection Regulation, and on the other hand, freedom of information and expression. Any limitation and exception to the General Data Protection Regulation must be preceded by a proportionality assessment.

5 Development of Practice in Sweden Regarding the Relationship Between Media Fundamental Laws and Data Protection Regulation

There is no guiding decision from the Swedish Supreme Courts regarding the relationship between the constitutional protection for the publication of personal data in search services and the EU legal data protection regulation. The Supreme Court has stated in a decision that there are no guiding rulings on "the question of the relationship between

39 See the Court of Justice of the European Union ruling of June 22, 2021, Latvijas Republikas Saeima, C-439/19, EU:C:2021:504, p. 120.

40 See the Court of Justice of the European Union ruling of June 22, 2021, Latvijas Republikas Saeima, C-439/19, EU:C:2021:504, p. 123-129.

41 See the Court of Justice of the European Union ruling of March 7, 2024, Endemol Shine Finland Oy, C-740/22, EU:C:2024:216.

42 See the Court of Justice of the European Union ruling of March 7, 2024, Endemol Shine Finland Oy, C-740/22, EU:C:2024:216, p. 43.

43 See the Court of Justice of the European Union ruling of March 7, 2024, Endemol Shine Finland Oy, C-740/22, EU:C:2024:216, p. 52.

44 See the Court of Justice of the European Union ruling of March 7, 2024, Endemol Shine Finland Oy, C-740/22, EU:C:2024:216, p. 55.

45 See the Court of Justice of the European Union ruling of March 7, 2024, Endemol Shine Finland Oy, C-740/22, EU:C:2024:216, p. 55 and cf. Recital 154 and Article 85 of the General Data Protection Regulation.

46 See the Court of Justice of the European Union ruling of March 7, 2024, Endemol Shine Finland Oy, C-740/22, EU:C:2024:216, p. 56 and 58.

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EU's Data Protection Regulation and Constitutional Protection of Freedom of Expression in the Form of Publication of Information on Prosecutions on Websites. The Supreme Court therefore granted

leave to appeal in a case where the Court of Appeal had denied leave to appeal. The parties in the case have, however, later reached a settlement, and the case was therefore not tried in the highest instance.

The Administrative Court of Stockholm has, in a judgment concerning the publication of sensitive personal data in a search service, assessed that the Data Protection Regulation is a law referred to in Chapter 1, Section 20 of the Freedom of the Press Act (YGL). In the same judgment, the Administrative Court assessed that the publication in the search service could not be considered to occur for journalistic purposes.

Recently, a number of Swedish court rulings have been issued where the court concludes that Chapter 1, Section 7, first paragraph of the Data Protection Act cannot be fully applied to the publication of personal data carried out by search services with a publishing certificate. Below are some of these rulings.

The Administrative Court of Stockholm has interpreted Chapter 1, Section 7, first paragraph of the Data Protection Act in accordance with EU law in a case concerning an appeal against the Prosecutor's Office's decision to deny a request for public documents based on Chapter 21, Section 7 of the Public Access to Information and Secrecy Act (2009:400), OSL. This is despite the fact that the company requesting the documents had a publishing certificate. The Administrative Court noted that such a strict approach as follows from Chapter 1, Section 7 of the Data Protection Act, meaning that the Swedish constitutional protection must always take precedence over the Data Protection Regulation for those holding a publishing certificate, is not compatible with the principle of the primacy of EU law. The Administrative Court justified this by stating that the constitutionally protected part of the activity under Swedish law is completely exempt from the provisions of the Data Protection Regulation and that no proportionality assessment is made between, on the one hand, the right to protection of personal data and, on the other hand, the right to protection of freedom of expression and information. The Administrative Court considered that, in light of the principle of the primacy of EU law and the case law of the Court of Justice of the European Union, a balancing must be made in each individual case between the privacy protection interest expressed through the Data Protection Regulation and the constitutionally protected rights applicable to holders of publishing certificates found in media legislation.

The Administrative Court's ruling has been appealed to the Supreme Administrative Court (HFD). The Court of Appeal for Upper Norrland has, similar to the Administrative Court of Stockholm, interpreted Chapter 1, Section 7, first paragraph of the Data Protection Act in accordance with EU law. The case concerned a request for public documents from a news agency. The Court of Appeal interpreted Chapter 1, Section 7, first paragraph of the Data Protection Act in the same way as the Administrative Court of Stockholm. However, the Court of Appeal decided to disclose the documents with the condition that they are only used for journalistic purposes and that personal identification numbers, personal names, and addresses of individuals are not provided to the public or paying customers through the company's database.

Several district courts have, based on Chapter 21, Section 7 of the OSL, denied requests for public documents from companies with publishing certificates for databases. In certain district court and

47 See the Supreme Court's decision on March 21, 2023, in case no. Ö 3743-22, cf. the considerations made regarding the procedural obligation to produce documents in the Supreme Court's decision in case no. Ö 1750-20.

48 The Administrative Court's judgment on June 22, 2023, in case no. 1128-23. The judgment has been appealed to the Supreme Administrative Court.

49 This interpretation model means that a national legal rule is interpreted in a way that achieves compatibility with EU law.

50 See the Administrative Court of Stockholm's judgment on March 13, 2024, in case no. 6027-23.

51 Cf. the Court of Justice of the European Union's judgment on June 22, 2021, *Latvijas Republikas Saeima*, C-439/19, EU:C:2021:504, para. 105.

52 See the ongoing case no. 1667-24 at the Supreme Administrative Court.

53 See the Court of Appeal for Upper Norrland's decision on March 28, 2024, dnr 2024/91.

54 See, among others, Skellefteå District Court's decision on February 27, dnr TSK 2024/43.

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Administrative court decisions have granted companies with publishing permits that are news agencies and produce their own news, as in the appellate court case above, access to information with certain reservations.⁵⁵

Umeå District Court has justified one of its rejection decisions under Chapter 21, Section 7 of the OSL (Public Access to Information and Secrecy Act) by stating that the case law of the Court of Justice of the European Union⁵⁶ constitutes an obstacle to national legislation that allows public authorities responsible for registers of information about offenses to transfer this information to economic operators for further use, and imposes high demands on national courts when disclosing criminal judgments.⁵⁷

Malmö District Court has also rejected a request for public documents based on Chapter 21, Section 7 of the OSL.⁵⁸ The District Court notes that Chapter 1, Section 7, first paragraph of the Data Protection Act should imply that holding a publishing permit means that Chapter 21, Section 7 of the OSL is not applicable in relation to the permit holder, which also applies to those conducting activities that are not journalistic. However, the District Court questions whether Chapter 1, Section 7, first paragraph of the Data Protection Act, together with the regulation regarding publishing permits, is compatible with EU law. The District Court observes that the Data Protection Regulation does indeed provide the national legislator with opportunities to prescribe the detailed application and certain exceptions from the regulation in Articles 85 and 86, but such exceptions require appropriate safeguards for the fundamental rights and freedoms of the data subjects. Furthermore, the possibility of making exceptions from the Data Protection Regulation should be interpreted in light of the Charter of Fundamental Rights of the European Union, including Articles 8, 11, and 52.⁵⁹ The District Court thus considers that the Swedish legislation's exceptions from the Data Protection Regulation for activities with publishing permits, regardless of the purpose of the activity, are not compatible with EU law because no balancing is made in the individual case between, on the one hand, the interest in protecting personal data and, on the other hand, freedom of information and expression. The District Court assesses the legal situation to mean that, at present, considering the case law of the Court of Justice of the European Union, a balancing must be made in each application situation between the privacy protection interest expressed in the Data Protection Regulation and Article 8 of the Charter, and the rights enshrined in the Swedish Constitution in the media fundamental laws.

Furthermore, Attunda District Court has decided to request a preliminary ruling from the Court of Justice of the European Union in a civil case regarding the publication of information about offenses on the internet by a company with a publishing permit.⁶⁰ Attunda District Court has assessed that there is room for interpretation regarding the extent to which and for what purposes the Data Protection Regulation allows member states to take legislative measures concerning the processing of personal data and what requirements the Data Protection Regulation imposes on national legislation adopted under the regulation. The questions to the Court of Justice of the European Union concern whether the protection provided by the YGL (Fundamental Law on Freedom of Expression) for search services in publication is compatible with the Data Protection Regulation.

⁵⁵ See, among others, Umeå District Court's decision of March 20, 2024, diary number TUM 2024/173-14 and Malmö District Court's decision of January 23, 2024, diary number TMA 2024-56-4. See also Umeå District Court's decisions diary numbers TUM 2024/181, TUM 2024/195, TUM 2024/173, TUM 2024/173-2, TUM 2024/173-9, TUM 2024/173-11, and TUM 2024/173-15. See also the Administrative Court in Stockholm's four decisions of April 24, 2024, diary numbers FST 2024/256, FST 2024/257, FST 2024/259, and FST 2024/260.

⁵⁶ See the Court of Justice of the European Union's judgment of June 22, 2021, Latvijas Republikas Saeima, C-439/19, EU:C:2021:504, paras. 123-129 and the Court of Justice's judgment of March 7, 2024, Endemol Shine Finland Oy, C-740/22, EU:C:2024:216.

57 See Umeå District Court's decision of March 20, 2023, diary number TUM 2024/173-14.

58 See Malmö District Court's decision of January 23, 2024, diary number TMA 2024-56-4.

59 Cf. the Court of Justice of the European Union's judgment of June 22, 2021, Latvijas Republikas Saeima, C-439/19, EU:C:2021:504 and the Court of Justice's judgment of February 14, 2019, Buivids, C-345/17, EU:C:2019:122.

60 See Attunda District Court's decision of March 1, 2024, in case number T 3743-23 and the ongoing case at the Court of Justice of the European Union, Garrapatica, C-199/24.

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6 Development of Practice Regarding the Right to Lodge Complaints and the Supervisory Authorities' Duty to Investigate

An EU regulation, such as the General Data Protection Regulation, is binding in all respects and directly applicable in each member state, and its provisions have – according to Article 288 TFEU and due to the nature of regulations and their function in the EU's legal source system – generally immediate effects in the national legal orders, without the need for national authorities to take any implementing measures.⁶¹

Anyone who believes that the processing of personal data concerning them is in violation of the General Data Protection Regulation has the right to lodge a complaint with a supervisory authority (Article 77.1). Each supervisory authority shall be competent to perform the tasks and exercise the powers conferred on it by the General Data Protection Regulation within the territory of its own member state (Article 55.1). The Court of Justice of the European Union has established that the wording of Articles 55.1 and 77.1 indicates that no national implementing measures are required to enforce these provisions and that they are sufficiently clear, precise, and unconditional to have direct effect. This implies, among other things, that the General Data Protection Regulation establishes the scope of the authority that member states must confer on the supervisory authority to oversee the application of the General Data Protection Regulation. Furthermore, it follows that if a member state has chosen to establish a single supervisory authority, this authority must have all the powers that are conferred on supervisory authorities by the General Data Protection Regulation.⁶²

The supervisory authority is tasked with monitoring compliance with the General Data Protection Regulation (Article 8.3 of the Charter and Articles 51.1 and 57.1 a of the General Data Protection Regulation)⁶³ and is obliged to handle complaints that everyone has the right to submit within its territory (Articles 57.1 f and 77.1 of the General Data Protection Regulation).⁶⁴

The Court of Justice of the European Union has ruled that Article 57.1 f of the General Data Protection Regulation not only requires the supervisory authority to handle complaints from individuals but also obliges it, to the extent necessary, to examine the purpose of the processing of personal data that the complaint concerns.⁶⁵ The supervisory authority shall, with due diligence, investigate complaints in accordance with Article 77.1 of the General Data Protection Regulation and has, among other things, been granted significant investigative powers under Article 58.1.⁶⁶ The Court of Justice emphasizes that the complaint procedure does not resemble the procedure for a request but is designed as a mechanism aimed at effectively protecting the rights and interests of the data subjects.⁶⁷

Article 78.1 of the General Data Protection Regulation states that individuals have the right to an effective remedy against a legally binding decision concerning them made by a supervisory authority.⁶⁸ Decisions made by IMY can be appealed to an administrative court according to

61 See the Court of Justice of the European Union judgment of January 16, 2024, Österreichische Datenschutzbehörde, C-33/22, EU:C:2024:46, p. 59-60 and the case law cited therein.

62 See the Court of Justice of the European Union judgment of January 16, 2024, Österreichische Datenschutzbehörde, C-33/22, EU:C:2024:46, p. 62-64.

63 See the Court of Justice of the European Union judgment of July 16, 2020, Facebook Ireland and Schrems, C-311/18, EU:C:2020:559, p. 107.

64 See the Court of Justice of the European Union judgment of July 16, 2020, Facebook Ireland and

Schrems, C-311/18, EU:C:2020:559, p. 109.

65 See the Court of Justice of the European Union judgment of December 7, 2023, SCHUFA Holding, C-26/22 & C-64/22, EU:C:2023:958, p. 56.

66 See the Court of Justice of the European Union judgment of December 7, 2023, SCHUFA Holding, C-26/22 & C-64/22, EU:C:2023:958, p. 56 and 58.

67 See the Court of Justice of the European Union judgment of December 7, 2023, SCHUFA Holding, C-26/22 & C-64/22, EU:C:2023:958, p. 57-58.

68 Cf. Article 47 of the Charter.

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Chapter 7, Section 3 of the Data Protection Act.⁶⁹ The Court of Justice of the European Union has established that Article 78.1 of the General Data Protection Regulation (GDPR) should be interpreted to mean that national courts, when reviewing decisions, must conduct a full judicial review of the supervisory authorities' decisions.⁷⁰ This review includes an assessment of whether the authorities have adhered to the limits of their discretion regarding their use of corrective powers under Article 58.2 of the GDPR.⁷¹ In previous Swedish case law from the Supreme Administrative Court regarding the now-repealed rules in the Data Protection Directive⁷² and the Personal Data Act (1998:204), the Supreme Administrative Court held that the decisions of the Swedish Authority for Privacy Protection (IMY) not to take action in response to complaints from individuals or decisions to dismiss a supervisory matter could not be appealed.⁷³ In connection with the introduction of the GDPR, it was stated in the preparatory works that it would be up to the courts to determine whether the previously applicable practice remained relevant or whether the legal situation had changed with the introduction of the GDPR.⁷⁴ This has, in practice, meant that those who have initiated a complaint case with IMY have not been considered parties in a supervisory matter that has been initiated due to the complaint.

In November 2023, the Supreme Administrative Court issued two judgments regarding the appealability of IMY's decisions.⁷⁵ In one case, concerning IMY's decision to close a complaint case, the Supreme Administrative Court established that a decision whose implication is that IMY will not do what has been requested in a complaint must be regarded as a legally binding decision that is appealable under Article 78.1 of the GDPR. In the other case, concerning IMY's decision to close a supervisory matter initiated due to a complaint without action, the Supreme Administrative Court noted that if the supervisory matter deviates from what was requested in the complaint, the same situation arises as if the complaint had been dismissed outright. Since the complaint did not lead to the requested actions, the affected person was therefore considered to have the right to appeal IMY's decision even in such a situation.

The rulings from the Supreme Administrative Court have led IMY to now assess that anyone submitting a complaint to IMY is a party in the complaint case and in a supervisory matter initiated due to a complaint.⁷⁶ Additionally, the government has referred a proposal for an amendment to, among other things, the Data Protection Act regarding a possibility for delay actions.⁷⁷ The reason for this is that the European Commission initiated an infringement procedure against Sweden in the spring of 2022, stating that Sweden lacks an effective remedy before the courts in accordance with, among other things, Article 78.2 of the GDPR.⁷⁸ The complainant's ability to file a delay action provides the complainant, in addition to their already strengthened position, further opportunity to influence the handling of their case with IMY.

69 See also Recital 141 of the GDPR, which states that all data subjects should have the right to lodge complaints and to an effective remedy, including when the national supervisory authority does not respond to a complaint, wholly or partially rejects or dismisses a complaint, or fails to act when necessary to protect the rights of the data subject.

70 See the Court of Justice of the European Union's judgment of December 7, 2023, SCHUFA Holding, C-26/22 & C-64/22, EU:C:2023:958, para. 53.

71 See the Court of Justice of the European Union's judgment of December 7, 2023, SCHUFA Holding, C-26/22 & C-64/22, EU:C:2023:958, paras. 68-69.

72 Directive 95/46/EC of the European Parliament and of the Council of October 24, 1995, on the protection of individuals with regard to the processing of personal data and on the free movement of such data.

73 See RÅ 2010 ref. 29.

74 See Prop. 2017/18:105 pp. 164-165.

75 See HFD 2023 ref. 54 I and II.

76 See IMY's position statement on party status in cases led due to complaints with diary number IMY-2023-16312. See also the Administrative Court of Stockholm's judgment of October 31, 2022, in case no. 13308-22, where the court assessed that anyone submitting a complaint becomes a party in the supervisory matter initiated due to the complaint. Since January 1, 2024, IMY no longer closes complaint cases to initiate new separate supervisory matters but handles any supervision in the same case as the complaint.

77 Ju2024/00708.

78 Ju2024/00708 p. 10.

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7 Assessment

7.1 Is the Swedish regulation on constitutional protection for search services compatible with EU law?

The IMY has so far assessed that the regulation in Chapter 1, Section 7, first paragraph of the Data Protection Act and the regulation in the Freedom of the Press Act (Chapter 1, Sections 11 and 14 of the Freedom of the Press Act) means that the IMY is prevented from exercising supervision over search services with a publishing certificate. The question to be assessed in this legal position is whether the principle of the precedence of EU law means that the IMY has the authority to exercise supervision in such cases.

The Swedish regulation concerning the relationship between media constitutional laws and the General Data Protection Regulation (GDPR) entails, firstly, a categorical exception from the substantive regulation in the GDPR. This applies, for example, to the rights granted to data subjects by the regulation, such as the right of access, the right to erasure, the right to rectification, and the right to object.⁷⁹ The Swedish regulation also entails, secondly, a categorical exception from the GDPR's regulation regarding the authority, tasks, and powers of the supervisory authority⁸⁰ and from individuals' legal remedies to submit complaints to the supervisory authority⁸¹. The question is whether these exceptions are compatible with the requirements set by the Court of Justice of the European Union in the case law outlined in sections 4 and 6 above.

It can first be noted that the publication of personal data occurring in search services poses serious risks to individuals' personal privacy. This is due to the large amount of personal data, the search possibilities based on individuals, and the extensive and uncontrolled dissemination that publication entails. Even if each individual piece of information taken in isolation is not always perceived as infringing on privacy, the volume of personal data can provide an opportunity for mapping the individual and may be perceived as intrusive when disseminated to the public. The dissemination of information can also create concern among individuals regarding how the data is used. The concern may, for example, relate to the possibility that the information could be used by criminals to select and map victims based on age, that the individual lives alone, or owns a valuable vehicle. Furthermore, the information available through search services can be used to map public employees in order to subsequently attempt to influence the decisions they make in their official capacity through threats or other means. There are also search services that publish information about convictions in criminal cases and other information about legal violations that involve crimes. The processing of such data can cause significant harm to privacy and is therefore subject to special protective regulation under Article 10 of the General Data Protection Regulation.

Moreover, the IMY assesses that the interest in freedom of expression for publishing personal data in search services is generally considered to weigh relatively lightly. The IMY notes that the preparatory works for the constitution indicate that the purpose of introducing constitutional protection for voluntary publishing certificates was not to protect the type of publications that occur through the disclosure of searchable collections of personal data.⁸²

The regulation in the Freedom of the Press Act means that in most cases it is not possible to make a balancing assessment based on the circumstances of the individual case between the relevant rights when publishing personal data in search services. The IMY notes that according to the case law of the Court of Justice of the European Union, such a balancing assessment is required to reconcile the

79 See Articles 15, 16, 17, and 21 of the General Data Protection Regulation.

80 See Articles 55-58 of the General Data Protection Regulation.

81 See Article 77 of the General Data Protection Regulation.

82 See bet. 2001/02:KU21 p. 32, cf. bet. 2017/18:KU16 p. 41.

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current rights. Furthermore, Swedish courts have recently established in several rulings that a strict approach as stipulated in Chapter 1, Section 7, first paragraph of the Data Protection Act, namely that the Swedish constitutional protection shall always take precedence over the General Data Protection Regulation (GDPR) for those holding a publishing certificate, is not compatible with the principle of the primacy of EU law.⁸³

According to IMY's assessment, the interest in freedom of expression to publish personal data in search services, considering the serious privacy risks, cannot justify the extensive exceptions from the material regulations in the GDPR regarding, among other things, the right to rectification and the right to erasure.⁸⁴ Nor does the public interest in accessing information in search services weigh so heavily that it can be given general precedence over the individual's right to privacy protection and protection of personal data. Regarding information concerning convictions in criminal cases, the Court of Justice of the European Union has established that the right to freedom of information does not justify the disclosure of such personal data to anyone who requests such information, unless the recipient can demonstrate that they have a particular interest in obtaining the data.⁸⁵ It is also important to emphasize that although search services often publish documents that have been disclosed under the principle of public access, the publication of personal data in search services is not covered by the principle of public access.

The principle of public access means that everyone has the right to access public documents held by authorities (Chapter 2, Sections 1 and 4 of the Freedom of the Press Act). The principle of public access does not include a right for private actors who have requested public documents to further disseminate these.

The regulations in the Freedom of the Press Act (YGL) and Chapter 1, Section 7, first paragraph of the Data Protection Act also entail extensive exceptions from the regulations concerning the supervisory authority's jurisdiction, tasks, and powers, and from individuals' legal remedies to submit complaints to the supervisory authority. As indicated in Section 3.2 above, the legal remedies provided by YGL for individuals regarding the publication of personal data in search services are extremely limited.

Furthermore, the exception in Chapter 1, Section 20 of YGL for certain publications of sensitive personal data has a limited scope of application. Taken together, this means that individuals lack sufficiently effective legal remedies in cases of the publication of their personal data in search services. IMY notes that the development of case law in the Court of Justice of the European Union means that individuals have gained significantly stronger legal standing in the supervisory authority's complaint and supervision matters.⁸⁶ The Court of Justice has established that the possibility to submit complaints under Article 77.1 of the GDPR constitutes a mechanism designed to effectively protect the rights and interests of data subjects.⁸⁷ The right to submit complaints to the supervisory authority is thus a central legal remedy for individuals to have their rights fulfilled. IMY notes that against this

background, strong reasons are required to make a categorical exception from the individual's legal remedy to submit a complaint to the supervisory authority, unless there are simultaneously compensatory legal remedies that enable the individual to safeguard their rights. This is particularly important as it forms part of the fundamental right to protection of personal data that an independent

83 See, for example, the Administrative Court of Appeal in Stockholm's ruling on March 13, 2024, in case no. 6027-23, the Court of Appeal for Upper Norrland's decision on March 28, 2024, diary no. 2024/91, and Umeå District Court's decision on March 20, 2024, diary no. TUM 2024/173-14.

84 See, for example, the Court of Justice's ruling on March 7, 2024, Endemol Shine Finland Oy, C-740/22, EU:C:2024:216, para. 52 and the Court of Justice's ruling on February 14, 2019, Buivids, C-345/17, EU:C:2019:122, para. 64.

85 See the Court of Justice's ruling on March 7, 2024, Endemol Shine Finland Oy, C-740/22, EU:C:2024:216, para. 56.

86 See HFD 2023 ref. 54 I and II. See also the Administrative Court in Stockholm's ruling on October 31, 2022, in case no. 13308-22, where the court assessed that the person submitting a complaint becomes a party in the supervisory matter initiated due to the complaint. See also IMY's position on party status in matters initiated due to complaints with diary no. IMY-2023-16312.

87 See the Court of Justice's ruling on December 7, 2023, SCHUFA Holding, C-26/22 & C-64/22, EU:C:2023:958, para. 57-58.

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The authority shall ensure that data protection regulations are complied with (Article 8.3 of the Charter). IMY assesses that the interest in publishing personal data in search services cannot justify a categorical exception from the regulation regarding the right to lodge complaints. This interest also cannot justify a categorical exception from the supervisory authority's competence, tasks, and powers under the General Data Protection Regulation (GDPR).

IMY concludes that the regulation in YGL and Chapter 1, Section 7, first paragraph of the Data Protection Act—regarding the publication of personal data in search services—constitutes an overly far-reaching limitation of the right to privacy and the right to the protection of personal data as stated in the Charter and the regulation in the GDPR. This means that the Swedish regulation is not compatible with Article 52.1 of the Charter and Article 85 of the GDPR concerning the publication of personal data in search services.

To achieve compatibility with EU law, it is required that IMY, according to the regulation in the GDPR, is competent to investigate and address individuals' complaints regarding the publication of their personal data in search services. This means that the regulation in YGL and Chapter 1, Section 7, first paragraph of the Data Protection Act does not hinder the authority from exercising supervision in response to complaints under Article 77 of the GDPR.

This position does not cover the question of the extent to which the substantive regulation in the GDPR should be applied within the framework of such supervision. IMY will return to that question in its supervision.

7.2 The precedence of EU law over national law

The Court of Justice of the European Union has established that provisions in national law must not undermine the unity and effectiveness of EU law. The principle of the precedence of EU law has effects against all bodies in a Member State, and national provisions, including constitutional provisions, cannot constitute an obstacle to this. A Member State cannot therefore invoke provisions in national law, even if they have constitutional status, to exempt the processing of personal data covered by the scope of the GDPR from the supervision of the supervisory authority.⁸⁸ EU law thus takes precedence even over the constitution, and Swedish authorities and courts have an obligation to give effect to it in the application of EU law. There is no reservation in the Swedish accession agreement⁸⁹ to the EU regarding the legislative competence that has been transferred in the areas of TF and YGL.⁹⁰

However, Chapter 10, Section 6, first paragraph of the Instrument of Government (RF) states that the Parliament cannot transfer decision-making authority to the EU regarding matters that concern the principles of the state system. The provision that allows for the transfer of decision-making authority in the current Chapter 10, Section 6, first paragraph of the RF was introduced in 1994 prior to Sweden's EU membership.⁹¹ The only explicit conditions for the transfer of decision-making authority at that time were that the protection of freedoms and rights in the EU corresponded to that provided in the Instrument of Government and in the European Convention on Human Rights (ECHR). However, there were additional conditions for the transfer, but these

88 See the judgment of the Court of Justice of the European Union on January 16, 2024, Österreichische Datenschutzbehörde, C-33/22, EU:C:2024:46, pp. 70-71. See also the judgment of the Court of Justice of the European Union on June 22, 2021, Latvijas Republikas Saeima, C-439/19, EU:C:2021:504, p. 135.

89 See the Act on the Conditions for the Kingdom of Norway, the Republic of Austria, the Republic of Finland, and the Kingdom of Sweden's Accession to the Treaties on which the European Union is founded and on the Adaptation of the Treaties, EGT C 241, 29.8.1994, p. 21.

90 In some contexts, it has been incorrectly stated that such an exception exists, see SOU 2010:68 p. 106 ff. and Abrahamsson, Olle and Jermsten, Henrik, "On the Need for a New Model of Regulation for Freedom of Press and Expression," in SvJT 2014 p. 201.

91 See SOU 1993:14, Ds 1993:36, prop. 1993/94:114, bet. 1993/94:KU21.

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It was only evident from the preparatory works.⁹² These conditions were codified through amendments to the provision that came into force on January 1, 2003, and are expressed in such a way that the transfer must not affect the principles of the state form.⁹³

In connection with the constitutional amendment that occurred prior to EU membership, the Constitutional Committee stated that the area that cannot be transferred under Chapter 10, Section 6, first paragraph of the Instrument of Government is not limited to the provisions concerning the foundations of the state form but also includes other provisions that uphold fundamental principles in the Swedish constitutional system. The Committee particularly pointed out the significant importance of free opinion formation for the Swedish state form and emphasized the principle of public access to information, freedom of expression, the prohibition against censorship, the protection of whistleblowers, the accountability system, and other important principles in the media fundamental laws.⁹⁴

Considering that there is no reservation in the Swedish accession agreement and that the Court of Justice of the European Union has established that EU law takes precedence even over national constitutional law, it is unclear what effect the provision in Chapter 10, Section 6, first paragraph of the Instrument of Government has. Nor do statements in Swedish legislative work provide a clear picture of how the provision should be applied. The preparatory works indicated that the provision is a guideline intended for the legislator and not for the judicial authorities. It was further stated that courts and authorities are obliged to apply a legal act issued in an area where the EU has acquired the competence to legislate due to the transfer, even if the legal act would limit, for example, an important principle in the Freedom of the Press Act.⁹⁵

However, the Constitutional Inquiry expressed doubts about that perspective and stated that it concerns a legally binding rule whose wording does not exclude judicial review under the conditions that the Instrument of Government generally provides for such review.⁹⁶

The Swedish Authority for Privacy Protection (IMY) notes that from an EU law perspective, it is not possible to refrain from giving EU law precedence by referring to the provision in Chapter 10, Section 6, first paragraph of the Instrument of Government. Nevertheless, there are reasons to assess whether the constitutional protection for the publication of personal data in search services pertains to the foundations of the state form. This is supported by the fact that the preparatory works for Chapter 10,

Section 6, first paragraph of the Instrument of Government indicate that the prohibition against censorship, the accountability system, and other important principles in the media fundamental laws are included in the principles of the state form. However, regarding the voluntary constitutional protection typically used by search services, it can be noted that it is a protection that was established after Sweden's membership in the EU. Furthermore, it can be noted that the constitutional preparatory works warned that the constitutional protection could, in the worst case, encompass databases that are pure personal registers.⁹⁷ Thus, it concerns a form of publications that the constitutional legislator did not intend to protect. Furthermore, the constitutional legislator has subsequently limited the constitutional protection for search services that publish sensitive personal data. In that context, the Constitutional Committee stated that pure search services providing sensitive personal data are far removed from the purposes that the fundamental laws are intended to protect.⁹⁸ The Constitutional Committee has also stated that search services providing personal data about legal violations, etc., constitute a serious infringement on individuals' personal integrity⁹⁹ and that the current

92 See bet. 1993/94:KU21 p. 27 f.

93 See prop. 2001/02:72, bet. 2001/02:KU18.

94 See bet. 1993/94:KU21 p. 27. See also Brinnen, Martin, "The Publishing Certificates and the Swedish Media Fundamental Laws are Challenged," in SvJT at

<https://svjt.se/content/utgivningsbevisen-och-de-svenska-mediegrundlagarna-utmanas>

95 Prop. 2001/02:72 p. 35.

96 SOU 2008:125 p. 499 f.

97 Bet. 2001/02:KU21 p. 32.

98 Bet. 2017/18:KU16 p. 41.

99 See bet. 2017/18:KU16 and 2018/19:KU2, rskr. 2017/18:336 and 2018/19:16.

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The regulation provides insufficient protection against violations of privacy. The government has appointed a new inquiry to review the constitutional protection for search services that publish personal data regarding legal violations and search services that publish personal data about addresses, phone numbers, marital status, and other information concerning individuals' personal circumstances. The purpose of the inquiry is to strengthen the protection of personal privacy when personal data is published in such search services.

Against this background, IMY assesses that the publication of personal data occurring in search services lies outside the core area that the media constitutional laws aim to protect. Therefore, the constitutional protection for such publications cannot be considered to relate to the principles of the state form.

IMY concludes that the provision in Chapter 10, Section 6, first paragraph of the Instrument of Government does not constitute an obstacle to EU law taking precedence over the constitutional protection for search services with publishing permits.

7.3 Conclusion

IMY's position is – in light of the assessments presented above – that IMY has the authority to initiate supervision in response to complaints regarding the publication of personal data occurring in search services with publishing permits.

This legal position has been decided by Acting Director General David Törngren after presentation by lawyer Martin Wetzler. In the final processing, also participating were Acting Chief Legal Officer Cecilia Agnehall, Department Head Malin Blixt, Unit Head Jonas Agnvall, Unit Head Eva Bergholm Guhnby, Unit Head Albin Brunskog, Unit Head Catharina Fernquist, Unit Head Nidia Nordenström, Acting Unit Head Evelin Palmér, Unit Head Linn Sandmark, and Department Lawyers Olle Pettersson and

Andreas Persson.

David Törngren, 2024-05-14 (This is an electronic signature)

100 Bet. 2021/22:KU14 p. 29 and Appendix 3, rskr. 2021/22:283.

101 Dir. 2023:145.